KRISTIAN CUKU · THE DEAL ARCHITECT

Before your **next launch.**

10 points for buyers who return.

Marketing decides today's sale.
Your contracts decide the next one.
Read them before your next launch.



Built from a structured analysis of real SPAs and broker agreements.
Each point: what it does · what it costs you · a better structure.

Educational guide. Not legal advice.

POINT 01

Commission clarity

RISK

LOW WATCH HIGH

The best brokers choose the simplest launch.

TYPICAL WORDING

8. COMMISSION STRUCTURE

The Developer may amend the Commission rates, structure and policies at any time by notice sent by email, and such changes shall be deemed accepted by the Broker.

→ *flexible for you. a warning sign for them.*

WHAT IT DOES

The commission can change after the broker has already invested in marketing and clients.

WHAT IT COSTS YOU

Top brokers compare launches. Terms that can move push them to the developer whose terms do not.

A BETTER STRUCTURE

1. **Fix the rate in writing on the registration date.**
2. **Apply any change only to new registrations.**

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POINT 02

A fixed payment date

RISK

LOW WATCH HIGH

Not "after collection".

TYPICAL WORDING

7. COMMISSION ENTITLEMENT

Commission shall become payable only upon receipt by the Developer of twenty percent (20%) of the Purchase Price and all post-dated cheques for the remaining instalments.

→ *your sales team becomes your creditor.*

WHAT IT DOES

It moves your collection risk onto the people who sell for you.

WHAT IT COSTS YOU

Brokers finance the gap with their own cash. The strongest teams stop carrying it and sell the launches that pay on time.

A BETTER STRUCTURE

1. **Pay a first part on SPA signing and the rest on a fixed date.**
2. **State the number of days from trigger to payment.**

POINT 03

RISK

LOW WATCH HIGH

Handover delay

Silence on delay is what buyers remember.

TYPICAL WORDING

14. COMPLETION

The Developer shall use reasonable endeavours to complete the Unit by the Anticipated Completion Date, which may be extended at the Developer's discretion.

→ *the date nobody can rely on.*

WHAT IT DOES

It leaves the buyer without a firm date, and without a remedy if the date moves.

WHAT IT COSTS YOU

A delayed buyer without compensation becomes your loudest reviewer, and never your next buyer.

A BETTER STRUCTURE

1. **Set a limited extension period, in months.**
2. **State a clear compensation after that period.**

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POINT 04

RISK

LOW WATCH HIGH

Area variance

If it can shrink, it can be refunded.

TYPICAL WORDING

11. AREA

The Purchaser accepts that the Net Area may vary by up to five percent (5%) without any adjustment to the Purchase Price.

→ *a tolerance that works one way.*

WHAT IT DOES

The unit can be smaller at the same price, with no refund to the buyer.

WHAT IT COSTS YOU

Buyers measure. A one-way clause is cheap today and expensive in reputation tomorrow.

A BETTER STRUCTURE

1. **Adjust the price both ways beyond a small tolerance.**
2. **Measure through an independent surveyor.**

POINT 05

"Equal or better"

It must mean something.

RISK

LOW | WATCH | HIGH

TYPICAL WORDING

12. VARIATIONS

The Developer may change the materials, finishes and specifications of the Unit in its sole discretion.

→ *every investor reads this line first.*

WHAT IT DOES

It allows changes to what was marketed without the buyer's agreement.

WHAT IT COSTS YOU

Investors read this clause before any other. Defining "equal or better" costs little and builds trust.

A BETTER STRUCTURE

1. **Define "equal or better quality and value" in the contract.**
2. **Notify buyers of material changes in writing.**

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POINT 06

Resale before handover

RISK

LOW WATCH HIGH

Investors return to projects they can exit.

TYPICAL WORDING

18. ASSIGNMENT

The Purchaser may not assign or transfer this Agreement before Completion without the prior written consent of the Developer, which may be withheld.

→ *no clear exit, no investor.*

WHAT IT DOES

It blocks the buyer from reselling before handover, or makes it uncertain.

WHAT IT COSTS YOU

Investors buy launches they can exit. A clear resale route fills your next launch with them.

A BETTER STRUCTURE

1. **Allow resale once a set share of the price is paid.**
2. **Publish one reasonable transfer fee.**

Educational guide. Not legal advice.

POINT 07

Payments and progress

RISK

LOW WATCH HIGH

Trust grows when money follows progress.

TYPICAL WORDING

5. PAYMENT SCHEDULE

Instalments shall be paid on the dates set out in Schedule 3, irrespective of the progress of construction.

→ *money ahead of the building.*

WHAT IT DOES

It ties payments to the calendar instead of to construction.

WHAT IT COSTS YOU

Buyers who pay ahead of progress feel exposed. Linking payments to verified milestones becomes a selling point.

A BETTER STRUCTURE

1. **Link instalments to verified construction milestones.**
2. **Share a progress report with each payment request.**

Educational guide. Not legal advice.

POINT 08

Defects after handover

RISK

LOW WATCH HIGH

The first year decides the next sale.

TYPICAL WORDING

20. DEFECTS

The Developer shall remedy defects notified within twelve (12) months of Completion within a reasonable time.

→ *reasonable for whom?*

WHAT IT DOES

It leaves the buyer without a response time once the keys are handed over.

WHAT IT COSTS YOU

Handover is the moment a buyer decides whether to buy from you again.

A BETTER STRUCTURE

1. **Name a response time for defects.**
2. **Give buyers one contact point after handover.**

Educational guide. Not legal advice.

POINT 09

RISK

LOW WATCH HIGH

Past buyers

Your cheapest buyer is the one you already have.

TYPICAL PRACTICE

AFTER HANDOVER

The buyer's details stay in the sales system and are not used again until the next general campaign.

→ *your most valuable list, left unused.*

WHAT IT DOES

Every new launch starts again from cold leads and paid advertising.

WHAT IT COSTS YOU

A buyer who trusts you is the cheapest sale you will ever make. Ignored, he buys from someone else.

A BETTER STRUCTURE

1. **Keep a database of past buyers and their brokers.**
2. **Give them first access to every new launch.**

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POINT 10

RISK

LOW WATCH HIGH

What you measure

Sold out is a day. Reputation is a decade.

TYPICAL PRACTICE

SUCCESS REPORT

Success is reported as days to sell out and price per square foot.

Repeat purchases are not measured.

→ *what you do not measure, you lose.*

WHAT IT DOES

It rewards the fastest sale, even when the contract behind it costs you the next one.

WHAT IT COSTS YOU

Two launches that sell out at the same speed are not equal if only one of them brings its buyers back.

A BETTER STRUCTURE

1. **Track how many buyers come back for the next launch.**
2. **Track how many brokers stay with you launch after launch.**

Educational guide. Not legal advice.

WHAT TO DO NEXT

Three steps.

Before your next launch.

01 Read your contracts as a buyer would.

And as your best broker would. Mark every clause you would not sign yourself.

02 Score them against these 10 points.

Each HIGH point you fix is a reason for a buyer and a broker to come back.

03 Send me the clause you want to change.

Reply in our chat. If you want to talk strategy for your next launch, I am one message away.

I spent years between developers, brokers and buyers.
Now I help all three win at the same table.

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